# Lecture Notes: Kesavananda Bharati & The Basic Structure Doctrine

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## Constitutional Law Lecture Transcript

## Topics: Secularism, Constitutional Identity, and Judicial Reasoning

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**Featuring:** The Original Constitution, Bhagavad Gita, Kesavananda

Bharati (1973), and the 13-Judge Bench Decision

July 22, 2026

*Transcribed and structured for comprehensive study. Includes classroom discussions, disciplinary remarks, and substantive legal analysis.*

# Contents

**1 Preliminary Remarks: Classroom Conduct and Disciplinary Warnings 2**
1.1 Attendance and Proxy Issues . . . 2
1.2 Bar Council of India (BCI) Directions on Conduct . . . 2

**2 The Original Constitution of India and the Philosophy of *Sarva Dharma Sambhava* 3**
2.1 The Physical Document: Art and Symbolism . . . 3
2.2 The True Meaning of Indian Secularism . . . 3
2.3 Universal Teachings: The Bhagavad Gita and the Quran . . . 4
2.3.1 Teaching from the Bhagavad Gita: Self-Elevation . . . 4
2.3.2 Teaching from the Quran: Tolerance and Forgiveness . . . 4
2.3.3 Critique of Modern "Spiritual" Commercialism . . . 5

**3 Kesavananda Bharati v. State of Kerala (1973): The Case and Its Context 6**
3.1 Introduction and Significance . . . 6
3.2 Factual Background . . . 6
3.3 The Central Issue . . . 7
3.4 Preamble as Part of the Constitution . . . 7

**4 The 13-Judge Bench: Arguments and Judicial Standpoints 8**
4.1 The Competing Arguments . . . 8
4.2 The Political Context: A Biased Bench? . . . 8
4.3 The Majority View: The "Identity" and "Basic Structure" . . . 9
4.3.1 Chief Justice S.M. Sikri . . . 9
4.3.2 Justices Shelat and Grover . . . 9
4.3.3 Justices Hegde and Mukherjea . . . 10
4.3.4 Justice P.J. Reddy . . . 10
4.4 The Decisive, Pivotal Opinion: Justice H.R. Khanna . . . 10

**5 Broader Constitutional Philosophy and Political Commentary 12**
5.1 The Danger of Absolute Power . . . 12
5.2 The Basic Structure as a Safeguard Against Tyranny . . . 12
5.3 Emergency Era and Censorship . . . 12
5.4 Final Message: Self-Reliance and the Federal Principle . . . 13

**6 Summary: The Seven Judges on the Winning Side 14**

# Preliminary Remarks: Classroom Conduct and Disciplinary Warnings

## Attendance and Proxy Issues

The Professor emphasized strict attendance enforcement and collective responsibility for classroom property. Key points: *

- **Collective Responsibility:** If classroom property (e.g., a malfunctioning device) is damaged and the specific student responsible is not identified, the cost (e.g., 60,000 rupees for a replacement) is to be recovered equally from all students in the class. This is a written rule in the university manual.
- **Proxy Attendance:** The Professor identified instances of students attempting to mark attendance for absent peers (calling out "Present" for multiple roll numbers). The warning was that attendance would be deducted for proxy calls, and fraudulent claims undermine trust.
- **Medical Leave Abuse:** A specific case was cited where a student broke his leg playing football and claimed the university was responsible because the university "gave permission to play," demanding medical leave. The Professor rejected this logic: "Who asked you to play? Is it compulsory from our side?" He warned against shifting personal responsibility onto the institution.

## Bar Council of India (BCI) Directions on Conduct

**BCI**

**Disciplinary Mandate:** *

- Students must address faculty with proper respect (using "Sir"/"Ma'am").
- Posting on social media regarding protests, or any content that may attract legal action, is prohibited.
- The Internship Committee is directed to conduct an orientation using the BCI letter.
- Any student found violating these rules should be reported to the BCI for disciplinary action.

# The Original Constitution of India and the Philosophy of *Sarva Dharma Sambhava*

## The Physical Document: Art and Symbolism

The Professor directed students to examine the original hand-written Constitution of India, illuminated by artists. Key features noted: *

- **Illustrations:** The document contains detailed artwork, including depictions of Lord Ram, Lord Krishna (imparting the Bhagavad Gita on a chariot, located in the Directive Principles section to symbolize *Raj Dharma*), and figures from Islamic history (e.g., Akbar in Part 8).
- **Calligraphy:** Hand-written by Prem Behari Narain Raizada.
- **Significance:** The artwork is a deliberate choice by the framers to represent India's diverse cultural and religious heritage, directly linked to the constitutional value of secularism.

## The True Meaning of Indian Secularism

The Professor contrasted Western and Indian secularism.

| **Western Secularism** | **Indian Secularism (*Sarva Dharma Sambhava*)** |
|---|---|
| Based on a strict **separation** or "distance" between State and Religion. Stemmed from historical conflict between the Church and the Ruler. | Based on **equal respect for all religions**. The State does not distance itself from religion but engages with all faiths equally. |
| Often leads to the exclusion of religious expression from the public sphere. | Actively acknowledges and respects the positive teachings of all religions. The Constitution does *not* mandate the "destruction of India's ancient culture." |

Table 1: Contrasting Models of Secularism

*"Secularism did not mean keeping a distance from religion. Secularism meant Sarva Dharma Sambhava (equal respect for all religions). 'Destroy India's*

*ancient culture'—it is nowhere written in the Constitution... Those who were making the Constitution wrote it down themselves. Today, if someone mentions ancient things, a hundred people stand up against it. This is not real secularism."*

# Universal Teachings: The Bhagavad Gita and the Quran

The Professor gave examples of how religious texts contain universal human values, which should be taught to all, irrespective of faith. This, he argued, is the constitutional vision.

### *Teaching from the Bhagavad Gita: Self-Elevation*

The Professor recited and explained a key verse:

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**Sanskrit Verse:**
*Uddhared atmanatmanam natmanam avasadayet*
*Atmaiva hy atmano bandhur atmaiva ripur atmanah*
**Meaning and Explanation:** *

1. **Self-Elevation:** A human being must elevate themselves through their own intellect, willpower, and good deeds. No one else can do this for you. "Who can elevate you? You can! Nobody else can." External privileges (like a wealthy family) are irrelevant without personal effort.
2. **Avoiding Despair:** One must not allow oneself to fall into despair, laziness, and bad thoughts. The Professor shared an anecdote about a colleague who would feign illness moments before class out of a lack of confidence, illustrating the need to overcome internal weakness.
3. **Mastery of the Mind:** The mind itself can be one's greatest friend or, if uncontrolled, one's greatest enemy. An example was given of a woman in Meerut who conspired with her driver to murder her husband, demonstrating the catastrophic consequences of an uncontrolled mind.

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*"Now tell me, where in the Gita is it written that only Hindus have to control the mind? How did this become 'non-secular'? This is for every human being! Do people who follow Islam never go into depression? If they are going into depression, to elevate them, we can tell them from the Quran as well. No, no, tell them from the Gita too!"*

### *Teaching from the Quran: Tolerance and Forgiveness*

The Professor cited a case from Pakistan where the court praised the Quran for identifying the two pillars of Islam as **Tolerance** and **Forgiveness**.

*"If Islam says 'Tolerance and Forgiveness,' why shouldn't this be taught to all Hindu children as well? ... See, our religions are one and the same in*

*these aspects! They also say tolerance, we also say tolerance. They also say forgiveness, we also say forgiveness. This is what the Constitution wanted!"*

### *Critique of Modern "Spiritual" Commercialism*

The Professor criticized figures like Ramdev for commercializing spirituality, arguing that true adherence to Indian scriptures would preclude becoming a businessman and accumulating wealth, as the scriptures teach that everything must be left behind. This, he noted, is a degradation of religious principles.

# Kesavananda Bharati v. State of Kerala (1973): The Case and Its Context

## Introduction and Significance

The Professor introduced the case with high praise for a former student's presentation, which he used as a benchmark for the depth of analysis expected.

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- **Full Case Name:** His Holiness Kesavananda Bharati Sripadagalvaru v. State of Kerala.
- **Citation:** AIR 1973 SC 1461.
- **Bench:** 13 Judges. This is the largest Constitution Bench in the history of the Indian Supreme Court.
- **Decision Date:** 24th April 1973.
- **Judgment:** A deeply fragmented 7:6 verdict (described as a "6.5 to 6.5 judgment" pulled to a majority by the Chief Justice).
- **Hearing Duration:** 66 days (the longest until the Ayodhya dispute hearings, which lasted around 63 days).
- **Key Advocates:**
  - **For Petitioners:** Nani A. Palkhivala (leader), along with Daphtary, Chagla, Soli Sorabjee, Deewan, Harindranath, and others.
  - **For Respondents (State):** H.M. Seervai (Advocate General of Maharashtra, described by the Professor as "the world's greatest constitutional jurist," not to be "limited" to a state role).

## Factual Background

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1. **The Petitioner:** Kesavananda Bharati was the chief of a religious sect (matha) in Kerala. The sect owned significant land.
2. **The State Action:** The Kerala government enacted the Kerala Land Reforms Act, 1963, and the Kerala Land Reforms Amendment Act, 1969, which placed restrictions on land holdings. The State claimed ownership of the sect's land under these laws.
3. **Initial Petition:** The Swami filed a petition under Article 32 in the Supreme Court to enforce his rights under Articles 25, 26, 14, 19(1)(f), and 31.

4. **The Supervening Event:** While the petition was pending, the Indira Gandhi government passed the 24th, 25th, and 29th Constitutional Amendments (partly to overcome the *Golaknath* decision of 1967). The Kerala Land Reforms Amendment Act, 1971, was also passed, and it was placed in the Ninth Schedule, shielding it from judicial review.
5. **The Broadened Challenge:** The petition was amended to challenge the validity of the 24th, 25th, and 29th Amendments themselves.

# The Central Issue

**Core**

**Question:** What is the extent of the amending power conferred by Article 368 upon Parliament? *

- Is the power to amend the Constitution absolute and unlimited?
- Or is it subject to inherent or implied limitations that prevent Parliament from destroying the Constitution's basic features?
- Specifically, can Fundamental Rights be abrogated by a constitutional amendment?

This was a direct conflict on whether *Golaknath* was correctly decided and what "amendment" means.

# Preamble as Part of the Constitution

The Professor explained the reasoning for why the Preamble is a part of the Constitution, a key finding in the case. *

1. **The Argument:** The Preamble was debated, discussed, and passed by the Constituent Assembly in the same manner as all other provisions.
2. **The Act of Adoption:** It was adopted, enacted, and "given to ourselves" with the rest of the Constitution.
3. **Declaration of the Constituent Assembly:** The framers explicitly adopted it as a part of the Constitution.
4. **Conclusion:** The Preamble is not a mere guiding philosophy external to the document; it is an integral part of the Constitution.

# The 13-Judge Bench: Arguments and Judicial Standpoints

## The Competing Arguments

| **Petitioners' Arguments (Nani Palkhivala)** | **Respondents' Arguments (State)** |
|---|---|
| Parliament's power to amend the Constitution is **limited and restricted**. It is not a power to destroy. | The power of Parliament to amend the Constitution is **absolute, unlimited, and unfettered**. |
| The Constitution was granted to secure **freedom from tyranny**. An unlimited amending power can be used to become tyrannical and take away all rights. | Unfettered **supremacy of Parliament** is a basic principle of the Indian legal system. |
| The **features of freedom** are at risk if not constitutionally protected from the whims of a transient majority. | There is a **necessity to fulfill socio-economic obligations** which may require amending property rights and other FRs. |
| There is a **restrictive competence** on the amending power, a suspicion voiced by Justices Hidayatullah and Mudholkar in *Sajjan Singh v. State of Rajasthan*. This is not a new idea but a continuation of that judicial caution. | Even a democracy can be turned into a **one-party rule** if power is not checked. (The Professor noted the irony that this was an argument put forward by the State, which was itself trending toward one-party rule). |

## The Political Context: A Biased Bench?

The Professor provided a candid assessment of the judges' perceived leanings, explaining that the 6 judges in the minority in *Golaknath* were now part of this larger bench. Indira Gandhi attempted to "neutralize" them by appointing new judges.

> *"The biggest servants of Indira Gandhi were these two: Dwivedi and Beg. Dwivedi's case is understandable; he was related to a Cabinet Minister who was Indira Gandhi's right hand... What about Beg? ... Beg tried to be even more loyal than Dwivedi to Indira Gandhi, and later became Chief Justice too because Indira Gandhi made him one!"*

| **"With the Constitution" (Majority)** | **"Non-Committed/Reluctant"** | **"With the Government" (Minority)** |
|---|---|---|
| Judges who held that the amending power is limited and cannot destroy the Constitution's basic structure. Their loyalty was to the constitutional identity. (Chief Justice S.M. Sikri, Justices Shelat, Grover, Hegde, Mukherjea, Reddy). | The pivotal judges who were not clearly aligned. **Justice H.R. Khanna** was the key non-committed judge whose opinion was decisive. | Judges who held that Parliament's power was absolute. The Professor identified **Justice S.N. Dwivedi** and **Justice M.H. Beg** as the biggest "servants" of the Indira Gandhi government. Justice A.N. Ray was described as relatively more "neutral" among the minority. |

Table 3: Judicial Alignments on the Bench as Described in the Lecture

# The Majority View: The "Identity" and "Basic Structure"

The Professor meticulously went through the opinions of the judges forming the majority, highlighting their different emphases. The students were made to read aloud from the ratios.

### *Chief Justice S.M. Sikri*

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- **Core Phrase:** "Identity of the Constitution."
- **Ratio:** "The expression 'amendment of this Constitution' does not enable Parliament to abrogate or take away Fundamental Rights or to completely change the fundamental features of the Constitution so as to destroy its identity."
- **Emphasis:** The Constitution has an **identity**, and an amendment cannot destroy that identity. Within the limits of preserving this identity, Parliament can amend everything.
- **Essential Features Listed:** (1) Supremacy of the Constitution; (2) Republican and Democratic form of Government; (3) Secular character of the Constitution; (4) Separation of powers; (5) Federal character of the Constitution.

### *Justices Shelat and Grover*

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- **Core Phrase:** "Identity of the Constitution and its basic features."

- **Ratio:** "Though the power to amend cannot be narrowly construed and extends to all the articles, it is not unlimited so as to include the power to abrogate or change the identity of the Constitution and its basic features."
- **Essential Features Listed:** Supremacy of the Constitution; Republican and Democratic form of government; Sovereignty of India; Secular and Federal character; Demarcation of power (Separation of powers); Dignity of the individual; Unity and integrity of the country.

### *Justices Hegde and Mukherjea*

- **Ratio:** "Though the power to amend the Constitution under Article 368 is a very wide power, it does not yet include the power to destroy or emasculate the basic elements or the fundamental features of the Constitution."

### *Justice P.J. Reddy*

- **Ratio:** "Although the power of amendment is wide, it is not wide enough to totally abrogate or emasculate or damage any of the Fundamental Rights or the essential elements in the basic structure of the Constitution or of destroying the identity of the Constitution."

## The Decisive, Pivotal Opinion: Justice H.R. Khanna

Justice Khanna's opinion was distinct from both the six "identity" judges and the six "absolute power" judges. He is the reason the Basic Structure Doctrine prevailed.

1. **Rejection of Implied Limitations:** Justice Khanna began by rejecting the argument that there is an inherent, implied limitation on the amending power. He stated there is **no implied limitation**. Parliament's power is wide. This made Indira Gandhi "happy" initially.
2. **The Turn: The Meaning of "Amendment":** He then held that the limitation is derived from the word **"amendment"** itself.
3. **The Core Ratio:** "The question has been posed during arguments as to whether the power to amend under the above article includes the power to completely abrogate the Constitution and replace it by an entirely new Constitution. The answer to the above question in my opinion should be in the negative... The word 'amendment' postulates that the old Constitution survives without loss of identity despite the change and continues even though it has been subjected to alterations."
4. **Substance Must Survive:** A mere retention of some trivial provisions while the basic structure is destroyed is not a true amendment. The old Constitution must be retained in substance. "...it is not permissible to touch the foundation or to alter the basic institutional pattern. The word 'amendment'... cannot have the effect of destroying or abrogating the basic structure or framework of the Constitution."

5. **Conclusion:** While the power is not inherently limited, the concept of "amendment" necessarily excludes the concept of "destruction." This creates the limitation: you can change everything, but you cannot destroy the **Basic Structure**.

# Broader Constitutional Philosophy and Political Commentary

## The Danger of Absolute Power

The Professor connected the legal arguments back to political philosophy, specifically the social contract theory.

> *"What did Indira Gandhi say? 'I am absolute! I have unlimited power, unfettered power!' In a limited government... We formed government for convenience! And because a government was formed, we gave it some power, but power is limited! By giving up freedom, we took guaranteed rights! And... if they misbehave, we can remove them! Locke was proved wrong by Indira Gandhi!"*

He contrasted this with the Indian constitutional design, which rejected both absolute Parliamentary Sovereignty (British model) and absolute, unrestricted rights (early American model). India created a **balance**: rights are guaranteed but subject to reasonable restrictions (Articles 19(2)-(6)), and Parliament is supreme but not sovereign to the point of destroying the Constitution's identity.

## The Basic Structure as a Safeguard Against Tyranny

The Professor justified the Basic Structure doctrine, citing a debate with Professor Faizan Mustafa.

> *"If such a restriction of Basic Structure hadn't been put on Parliament's power, who knows, today in the Constitution, Indira Gandhi might have brought another amendment stating, 'Even after I die, my descendants shall be Prime Ministers!' ... Our judgment—today we are all here and can say with assurance that there are certain basic things that no matter what majority you get, you cannot change."*

## Emergency Era and Censorship

The discussion naturally led to the Emergency (1975-1977) as a real-world example of what happens when power is unchecked. *

- **Dismissal of I&B Minister:** Inder Kumar Gujral, then I&B Minister, was dismissed for refusing to censor news and submit it for prior approval to Sanjay Gandhi. The Professor quoted the exchange: "Do you want to stay a minister or not?"
- **Suppression of Press:** The electricity of the *Indian Express* was cut off to prevent printing. This led to the line of *Indian Express* cases, which are vital to Article 19 jurisprudence.

- **The Principle of *Ramesh Thappar*:** The Professor invoked the ratio of *Romesh Thappar v. State of Madras*: "Circulation of the newspaper, dissemination of information is included within the right to speech and expression!" Meaning, the State cannot circumvent free speech by allowing printing but banning distribution.

# Final Message: Self-Reliance and the Federal Principle

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- **Self-Elevation Reiterated:** The lecture closed by returning to the Gita's teaching. The Professor warned that all political parties (BJP, Congress, Owaisi) act in their own interest, not for students. "That is why Lord Krishna said what I told you: **You will have to elevate yourself!** Nobody is going to elevate you."
- **Federal Character:** The Professor noted with frustration that in 1973, Chief Justice Sikri declared the federal character of the Constitution to be a basic feature, yet many academics still persist in calling it "quasi-federal," a label he dismissed as incorrect and outdated.

# Summary: The Seven Judges on the Winning Side

| Judge(s) | Core Ratio | Key Terminology |
|---|---|---|
| **CJI S.M. Sikri** | Power to amend does not include power to completely change fundamental features so as to destroy the **identity** of the Constitution. | Identity of the Constitution; Supremacy; Republican/Democratic form; Secularism; Separation of Powers; Federal Character. |
| **Justices Shelat & Grover** | Power is not unlimited; cannot abrogate or change the **identity** of the Constitution and its basic features. | Identity & Basic Features. Added: Sovereignty, Dignity of Individual, Unity & Integrity. |
| **Justices Hegde & Mukherjea** | Power is very wide but does not include power to **destroy or emasculate** the basic elements or fundamental features. | Destroy/Emasculate Basic Elements. |
| **Justice P.J. Reddy** | Power is wide but not wide enough to totally **abrogate or emasculate** Fundamental Rights or essential elements of the basic structure or destroy the Constitution's identity. | Abrogate/Emasculate; Identity; Essential Elements. |
| **Justice H.R. Khanna** | No implied limitation, but the word **"amendment"** itself excludes destruction. The old Constitution must survive in substance; the basic structure/foundation cannot be touched. | Basic Structure; Institutional Pattern; Survival of Old Constitution; Amendment $\neq$ Abrogation. |

Table 4: Consolidated Ratios of the Majority in *Kesavananda Bharati*